

telephone with the party who filed the pleading that is subject to demurrer for the purpose of determining whether an agreement can be reached that would resolve the objections to be raised in the demurrer.” The Declaration of Ryan Kay does not establish compliance with the meet and confer requirements. CCP 435.5(a)(4) provides that an insufficient meet and confer process shall not be grounds to grant or deny a motion to strike. Therefore, the Court elects to reach the merits as it will not prejudice Plaintiff in this instance, rather than continuing the hearing to require meet and confer.

Merits: A motion to strike reaches only "irrelevant, false, or improper matter inserted in any pleading" or matter "not drawn or filed in conformity with the laws of this state." (Code Civ. Proc., § 436.) As with a demurrer, the court's review is limited to the face of the challenged pleading and matters subject to judicial notice; the allegations of the complaint are accepted as true, and extrinsic evidence offered by either side to create or resolve factual disputes is not properly considered on this motion. (Code Civ. Proc., § 437(a)).

Here, Defendant moves to strike punitive damages from the prayer for relief on the grounds that Plaintiff has not pled a viable fraud claim or any other cause of action that can support a punitive damages claim. Both parties refer to their briefing on the concurrently filed Demurrer, which is also on calendar today. As detailed in the Court’s tentative ruling on the Demurrer, the Court finds that Plaintiff has stated sufficient facts to constitute a cause of action for fraudulent concealment (Third Cause of Action) and for violation of the Consumer Legal Remedies Act, Civil Code section 1750 et seq. (Fourth Cause of Action). These two causes of action support a prayer for punitive damages.

Therefore, Defendant’s Motion to Strike is **DENIED**. Defendant is ordered to submit a proposed order consistent with this ruling.

LOZANO VS. COUNTY OF SHASTA
CASE NUMBER: 26CV-0210630

Tentative Ruling on Demurrer: Defendant County of Shasta demurs to the Plaintiff’s “Second Amended Complaint” filed July 13, 2026 on the grounds that it fails to allege facts sufficient to constitute a cause of action against Defendant pursuant to CCP 430.10(e). Plaintiff opposes the Demurrer.

Meet and Confer: CCP § 430.41 requires the demurring party to “meet and confer in person or by telephone with the party who filed the pleading that is subject to demurrer for the purpose of determining whether an agreement can be reached that would resolve the objections to be raised in the demurrer.” The Declaration of Renee Belcastro establishes compliance with the meet and confer requirements.

Merits: A demurrer should be sustained if the complaint fails to “state facts sufficient to constitute a valid cause of action.” CCP § 430.10(e). A demurrer can be used to challenge defects that appear on the face of the complaint or from matters that may be subject to judicial notice. *Blank v. Kirwan* (1985) 39 Cal. 3d 311, 318. The court “treat[s] the demurrer as admitting all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law.” *Hood v. Hacienda La Puente Unified School District* (1998) 65 Cal. App. 4th 435, 438. No matter how unlikely, a plaintiff’s allegations must be accepted as true for the purpose of ruling on a demurrer. *Del. E. Webb Corp. v. Structural Materials Co.* (1981) 123 Cal. App. 3d 593, 604. A plaintiff

must plead ultimate facts that acquaint the defendant with the nature, source and extent of plaintiff's causes of action. *Doe v. City of Los Angeles* (2007) 42 Cal. 4th 542, 550.

The operative complaint is Plaintiff's "Second Amended Complaint," filed July 13, 2026. It alleges the following causes of action on the caption page: 1) Wrongful Eviction/Unlawful Ouster (Cal. Civ. Code 789.3); 2) Conversion; 3) Negligence; 4) Trespass to Chattels. Within the body of the Complaint, Plaintiff also alleges: 5) Negligence; and 6) 42 USC 1983. The Amended Complaint consists mainly of a narrative description of events concerning his alleged tenancy at 2711 Cascade Blvd. Plaintiff alleges he lived there with the owner's permission, but was told not to return to the premises after the owner died. Plaintiff alleges his right to occupy the property is pursuant to a verbal lease agreement with the late owner.

None of the Causes of Action plead any elements at all. They consist simply of a list of causes of action. This is insufficient to put Defendant on notice of the nature, source, and extent of Plaintiff's causes of action. Further, even taken as true and given a liberal reading in favor of the Plaintiff, the facts alleged in the narrative portion of the Amended Complaint do not state sufficient facts to constitute a cause of action against Defendant. Plaintiff has not alleged a landlord-tenant relationship with the County and has not alleged that any particular personal property was unlawfully taken by the County.

Plaintiff has already had the opportunity to amend the Complaint to state a claim for relief against the County, after the County's first Demurrer was sustained with leave to amend. Plaintiff was unable to do so. The Opposition does not identify any additional facts that could be alleged to state a claim. There does not appear to be a reasonable possibility that the Complaint could be further amended to properly state a claim. Therefore, the Demurrer is **SUSTAINED** without leave to amend. A proposed order was improperly included as page 7 of the County's moving papers. Proposed orders must be submitted as stand-alone documents. The County is to submit a new proposed order for execution.

ROWLAND VS. PERRIN CONSTRUCTION, LLC, ET AL.

CASE NUMBER: 26CV-0209639

Tentative Ruling on Motion to Compel Further Responses to Requests for Production:

Plaintiff moves for an order compelling further responses to Requests for Production of Documents, Set One. Plaintiff also requests an award of \$2,000 in sanctions for bringing this Motion. Defendant opposes the Motion.

Pursuant to Ca. Code of Civ. Pro. section 2031.310(b) a motion to compel further responses must be accompanied by a meet and confer declaration under Section 2016.040, which provides "a meet and confer declaration in support of a motion shall state facts showing a reasonable and good faith attempt, *either in person, by telephone, or by videoconference*, to informally resolve each issue presented by the motion."

The Declaration of attorney Jameson Evans establishes that counsel sent meet and confer letters identifying deficiencies. The parties thereafter agreed to supplementation and extensions via email. Defendant later missed a deadline to supplement responses as agreed, and Plaintiff filed the instant Motion. There is no evidence in the record of a good faith attempt to meet and confer in person, by telephone, or by videoconference to informally resolve the issues raised by Motion. However, this is not grounds to deny a motion on the merits.